

Ashok Kumar Gupta v. State of U.P.

Allahabad High Court · Division Bench · 28 July 2021 · WRIT - C No. 13420 of 2021 · WRIT - C No. - 13420 of 2021 · **Writ disposed; petitioner relegated to Clause 6.5 of the Supply Code.**

HEADNOTE

A writ disputing an electricity bill on the plea that neither the petitioner nor his family had applied for a connection and that none was installed raises a question of fact. The Allahabad High Court held that the appropriate course is a representation to the Executive Engineer/SDO under Clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided expeditiously in accordance with law, including any one-time settlement plea.

FACTUAL SUMMARY

Ashok Kumar Gupta petitioned the Allahabad High Court against the State of U.P. and Purvanchal Vidyut Vitran Nigam Limited officers at Azamgarh, disputing an electricity bill. He asserted that neither he nor any family member had applied for a connection at the premises and that none had been installed. After listing orders directing service of notice on the discom, the Division Bench heard counsel on 28 July 2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

factual billing dispute remitted to Executive Engineer

HOLDING

Where a writ raises a factual dispute about an electricity bill—including a plea that no connection was applied for or installed—the High Court will not decide the controversy and will relegate the petitioner to the Executive Engineer/SDO under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If an application is filed within three weeks with a copy of the order, that officer must decide expeditiously in accordance with law; any one-time settlement plea, if raised, is also to be considered. ¶ 3

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ was disposed of without deciding the bill, sending the petitioner to Clause 6.5 as the proper forum. ¶ 3

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The Court treated the no-application/no-connection plea as a factual billing dispute for the Executive Engineer under Clause 6.5. ¶ 3

clause-6.5-statutory-remedy-disputed-bill Clause 6.5 was identified as the statutory course for the disputed electricity bill. ¶ 3

clause-6.5-representation-executive-engineer The petitioner was directed to approach the Executive Engineer/SDO, PuVVNL, Electricity Distribution Division-V, Azamgarh, under Clause 6.5. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER OR ANY FAMILY MEMBER APPLIED FOR, OR HAD INSTALLED, AN ELECTRICITY CONNECTION AT THE PREMISES

¶ 3

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

¶ 3

NOT DECIDED — ENTITLEMENT UNDER ANY ONE-TIME SETTLEMENT SCHEME

Directed to be considered if raised; not decided on merits. ¶ 3

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.